

**Second Regular Session
Seventy-fifth General Assembly
STATE OF COLORADO**

INTRODUCED

LLS NO. 26-0644.01 Craig Harper x3481

HOUSE BILL 26-1167

HOUSE SPONSORSHIP

Sirota, Brown, Taggart

SENATE SPONSORSHIP

Bridges, Amabile, Kirkmeyer

House Committees

Appropriations

Senate Committees

A BILL FOR AN ACT

101 **CONCERNING A SUPPLEMENTAL APPROPRIATION TO THE DEPARTMENT**
102 **OF REGULATORY AGENCIES.**

Bill Summary

(Note: This summary applies to this bill as introduced and does not reflect any amendments that may be subsequently adopted. If this bill passes third reading in the house of introduction, a bill summary that applies to the reengrossed version of this bill will be available at <http://leg.colorado.gov>.)

Supplemental appropriations are made to the department of regulatory agencies.

1 *Be it enacted by the General Assembly of the State of Colorado:*

Shading denotes HOUSE amendment. Double underlining denotes SENATE amendment.
Capital letters or bold & italic numbers indicate new material to be added to existing law.
Dashes through the words or numbers indicate deletions from existing law.

1 **SECTION 1. Appropriation to the department of regulatory**
2 **agencies for the fiscal year beginning July 1, 2025.** In Session Laws
3 of Colorado 2025, section 2 of chapter 476, (SB 25-206), **amend** Part
4 XIX as follows:
5 Section 2. **Appropriation.**

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	PART XIX						
2	DEPARTMENT OF REGULATORY AGENCIES						
3							
4	(1) EXECUTIVE DIRECTOR'S OFFICE AND ADMINISTRATIVE SERVICES						
5	Personal Services	3,628,696	12,584		18,304 ^a	3,597,808 ^b	
6						(35.7 FTE)	
7	Health, Life, and Dental	8,296,852	242,015		7,212,369^c	690,985^b	151,483(I)^d
8		9,193,761	250,492		8,071,291 ^c	715,189 ^b	156,789(I) ^d
9	Short-term Disability	39,778	949		34,682 ^c	3,291 ^b	856(I) ^d
10	Paid Family and Medical						
11	Leave Insurance	255,711	6,100		222,954 ^c	21,154 ^b	5,503(I) ^d
12	Unfunded Liability						
13	Amortization Equalization						
14	Disbursement Payments	5,682,473	135,565		4,954,528 ^c	470,084 ^b	122,296(I) ^d
15	Salary Survey	1,560,895	37,265		1,360,963 ^c	129,247 ^b	33,420(I) ^d

			APPROPRIATION FROM					
		ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
		\$	\$	\$	\$	\$	\$	\$
1	Step Pay	250,219		5,255		215,413 ^c	17,856 ^b	11,695(I) ^d
2	PERA Direct Distribution	1,114,382		26,585		971,626 ^c	92,188 ^b	23,983(I) ^d
3	Workers' Compensation	233,543		7,078		215,273 ^c	8,132 ^b	3,060(I) ^d
4	Operating Expenses	182,057		2,582		66,799 ^c	112,676 ^b	
5	Legal Services	17,612,668		154,241		17,241,581 ^c	124,080 ^b	92,766(I) ^d
6	Administrative Law Judge							
7	Services	679,975		16,840		663,135 ^c		
8	Payment to Risk							
9	Management and Property							
10	Funds	320,147		10,777		293,579 ^c	10,994 ^b	4,797(I) ^d
11	Vehicle Lease Payments	754,631				754,631 ^c		
12		552,119				552,119 ^c		
13	IT Asset, Hardware, and							
14	Software Maintenance	1,702,006		600		1,364,387 ^c	337,019 ^b	
15	Leased Space	5,222,606				4,547,052 ^c	497,044 ^b	178,510(I) ^d

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	Payments to OIT	7,485,114			7,394,664 ^c	90,450 ^b	
2		6,578,815			6,488,365 ^c		
3	CORE Operations	68,984	2,672		61,917 ^c	3,552 ^b	843(I) ^d
4	Consumer Outreach/ Education Program	200,000			200,000 ^c		
6		55,290,737					
7		55,078,835					
8							

9 ^a Of this amount, an estimated \$3,432 shall be from the Auto Dealers License Fund created in Section 44-20-133, C.R.S., an estimated \$2,860 shall be from the Stationary Sources Control
 10 Fund created in Section 25-7-114.7 (2)(b), an estimated \$2,288 shall be from the Pet Animal Care and Facility Fund created in Section 35-80-116 (1), C.R.S., an estimated \$1,716 shall
 11 be from the Fire Suppression Cash Fund created in Section 24-33.5-1207.6 (1), C.R.S., an estimated \$1,716 shall be from the Substance Abuse Prevention, Intervention, and Treatment
 12 Cash Fund created in Section 18-18.5-105 (1)(a), C.R.S., an estimated \$1,716 shall be from the Health Facility General Licensure Cash Fund created in Section 25-5-103.1 (1), C.R.S.,
 13 an estimated \$1,716 shall be from the License Plate Cash Fund created in Section 42-3-301 (b), C.R.S., an estimated \$1,716(I) shall be from the Wildfire Risk Mitigation Grant Program
 14 Cash Fund created in Section 23-31-310 (8.5)(a), C.R.S., and an estimated \$1,144 shall be from the Parks and Outdoor Recreation Cash Fund created in Section 33-10-111 (1), C.R.S.
 15 ^b These amounts shall be from departmental indirect cost recoveries or the Indirect Costs Excess Recovery Fund created in Section 24-75-1401 (2), C.R.S.

		APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	^c Of this amount, an estimated \$16,846,365 \$16,746,365 shall be from the Division of Professions and Occupations Cash Fund created in Section 12-20-105 (3), C.R.S., an estimated						
2	\$10,605,521 \$10,505,521 shall be from the Fixed Utility Fund created in Section 40-2-114 (1)(b)(II), C.R.S., an estimated \$7,749,389 \$7,699,500 shall be from the Division of Insurance						
3	Cash Fund created in Section 10-1-103 (3), C.R.S., an estimated \$4,041,114 shall be from the Division of Real Estate Cash Fund created in Section 12-10-215 (2)(b), C.R.S., an estimated						
4	\$2,258,799 shall be from the Division of Banking Cash Fund created in Section 11-102-403, C.R.S., an estimated \$1,986,438 shall be from the Division of Securities Cash Fund created						
5	in Section 11-51-707 (2), C.R.S., an estimated \$921,491 shall be from the Motor Carrier Cash Fund created in Section 40-2-110.5 (6), C.R.S., an estimated \$712,577 shall be from the						
6	Division of Financial Services Cash Fund created in Section 11-40-106 (2), C.R.S., an estimated \$600,000 shall be from the Indirect Costs Excess Recoveries Cash Fund created in Section						
7	24-75-1401, C.R.S., an estimated \$513,196 shall be from the Prescription Drug Monitoring Cash Fund created in Section 12-280-405 (1), C.R.S., an estimated \$358,087 shall be from						
8	the Telecommunication Fixed Utility Cash Fund created in Section 40-2-114 (1)(b)(I), C.R.S., an estimated \$349,580 shall be from the Legal Services Offset Cash Fund created in Section						
9	40-7-118 (1)(a), C.R.S., an estimated \$219,584 shall be from the Transportation Network Company Fund created in Section 40-10.1-607, C.R.S., an estimated \$191,656 shall be from						
10	the Conservation Cash Fund created in Section 12-15-107, C.R.S., an estimated \$60,394 shall be from the Colorado Telephone Users with Disabilities Cash Fund created in Section						
11	40-17-104, C.R.S., an estimated \$58,532 shall be from the Reinsurance Cash Fund created in Section 10-16-1107 (1)(a), C.R.S., an estimated \$56,095 shall be from the High Cost						
12	Administration Cash Fund created in Section 40-15-208 (3)(a), C.R.S., an estimated \$18,329 shall be from the 911 Surcharge Trust Cash Fund created in Section 29-11-102.3 (3)(c)(I),						
13	C.R.S., an estimated \$10,282 shall be from the Natural Medicine Facilitator Fund created in Section 12-170-111(2), C.R.S., and an estimated \$18,124 shall be from various cash fund						
14	sources.						
15	^d These amounts shall be from the Equal Employment Opportunity Commission, the U.S. Department of Housing and Urban Development, the U.S. Department of Justice, and the Health						
16	Information Counseling and Assistance Grant Program, and are included for informational purposes only.						

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	(3) CIVIL RIGHTS DIVISION						
2	Personal Services						
3	SERVICES ^{101a}	3,676,487	2,312,992			823,423 ^a	540,072(I) ^b
4		4,306,487	2,942,992				
5		(41.8 FTE)					
6	Operating Expenses	191,858	140,482				51,376(I) ^b
7	Indirect Cost Assessment	113,703					113,703(I) ^b
8		<u>3,982,048</u>					
9		4,612,048					
10							
11	^a This amount shall be from statewide indirect cost recoveries.						
12	^b These amounts shall be from the Equal Employment Opportunity Commission and the U.S. Department of Housing and Urban Development and are shown for informational purposes						
13	only.						
14							
15							

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1							
2	(4) OFFICE OF THE UTILITY CONSUMER ADVOCATE						
3	Personal Services	1,592,947			1,592,947 ^a		
4					(14.0 FTE)		
5	Operating Expenses	61,389			61,389 ^a		
6	Indirect Cost Assessment	146,438			146,438 ^a		
7							
8		1,800,774					
9	^a These amounts shall be from the Public Utilities Commission Fixed Utility Fund created in Section 40-2-114 (1)(b)(II), C.R.S.						
10							
11	(5) DIVISION OF FINANCIAL SERVICES						
12	Personal Services	1,620,805			1,620,805 ^a		
13					(15.6 FTE)		
14	Operating Expenses	132,280			132,280 ^a		

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	Indirect Cost Assessment	163,175			163,175 ^a		
2		1,916,260					
3							
4	^a These amounts shall be from the Division of Financial Services Cash Fund created in Section 11-40-106 (2), C.R.S.						
5							
6	(6) DIVISION OF INSURANCE						
7	Personal Services	12,705,039			12,622,236 ^a		82,803(I) ^b
8					(114.7 FTE)		
9	Operating Expenses	399,146			399,146 ^a		
10	Senior Health Counseling						
11	Program	533,253					533,253(I) ^b
12							(2.0 FTE)
13	Transfer to CAPCO						
14	Administration	13,500			13,500 ^a		

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	Colorado Reinsurance						
2	Program	765,122			765,122 ^c		
3					(4.0 FTE)		
4	Indirect Cost Assessment	1,286,779			1,241,589 ^a		45,190(I) ^b
5							
6		15,702,839					
7	^a Of these amounts, an estimated \$14,252,229 shall be from the Division of Insurance Cash Fund created in Section 10-1-103 (3), C.R.S., and an estimated \$24,242 shall be from the						
8	Viatical Settlements Cash Fund created in Section 10-7-619, C.R.S.						
9	^b These amounts shall be from the U.S. Department of Health and Human Services and are shown for informational purposes only.						
10	^c This amount shall be from the Reinsurance Program Cash Fund created in Section 10-16-1107 (1)(a), C.R.S.						
11							
12	(7) PUBLIC UTILITIES COMMISSION						
13	Personal Services	14,853,972			14,853,972 ^a		
14					(138.5 FTE)		
15	Operating Expenses	575,441			575,441 ^a		

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	Disabled Telephone Users						
2	Fund Payments	700,000			700,000 ⁽¹⁾ ^b		
3	Transfer to Reading Services						
4	for the Blind Cash Fund	610,000			610,000 ^c		
5	Colorado Commission for						
6	the Deaf, Hard of Hearing,						
7	and Deafblind Cash Fund	3,413,703			3,413,703 ^c		
8	Talking Book Library	253,381			253,381 ^c		
9	Colorado Bureau of						
10	Investigation Background						
11	Checks Pass-through	50,000			50,000 ^a		
12	Highway-Rail Crossing						
13	Signalization Fund	244,800			244,800 ^d		
14	Colorado Electric						
15	Transmission Authority	500,000			500,000 ^e		

		APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	Indirect Cost Assessment	1,496,393			1,448,694 ^a		47,699(I) ^f
2		22,697,690					
3							
4	^a Of these amounts, an estimated \$12,790,224 shall be from the Public Utilities Commission Fixed Utility Fund created in Section 40-2-114 (1)(b)(II), C.R.S., an estimated \$2,213,958						
5	shall be from the Public Utilities Commission Motor Carrier Fund created in Section 40-2-110.5 (6), C.R.S., an estimated \$958,032 shall be from the Telecommunications Utility Fund						
6	created in Section 40-2-114 (1)(b)(I), C.R.S., an estimated \$389,907 shall be from the Transportation Network Company Fund created in Section 40-10.1-607, C.R.S., an estimated						
7	\$283,794 shall be from the Colorado Telephone Users with Disabilities Fund created in Section 40-17-104 (1), C.R.S., an estimated \$213,712 shall be from the Colorado High Cost						
8	Administration Fund created in Section 40-15-208 (3)(a), C.R.S., and an estimated \$78,480 shall be from the 911 Surcharge Trust Cash Fund created in Section 29-11-102.3 (3)(c)(I),						
9	C.R.S.						
10	^b This amount shall be from the Colorado Telephone Users with Disabilities Fund created in Section 40-17-104 (1), C.R.S., and is shown for purposes of complying with Section 20 of						
11	Article X of the State Constitution. This money is continuously appropriated pursuant to Section 40-17-104 (1)(c), C.R.S., and is shown for informational purposes only.						
12	^c This amount shall be from the Colorado Telephone users with Disabilities Fund created in Section 40-17-104 (1), C.R.S.						
13	^d This amount shall be from the Public Utilities Commission Fixed Utility Fund created in Section 40-2-114 (1)(b)(II), C.R.S. HIGHWAY-RAIL CROSSING SIGNALIZATION FUND						
14	CREATED IN SECTION 40-29-116 (1), C.R.S.						

		APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	^e This amount shall be from the Highway-Rail Crossing Signalization Fund created in Section 40-29-116 (1), C.R.S. PUBLIC UTILITIES COMMISSION FIXED UTILITY FUND CREATED IN						
2	SECTION 40-2-114 (1)(b)(II), C.R.S.						
3	^f This amount shall be from the U.S. Department of Transportation Federal Transit Administration and is shown for informational purposes only.						
4							
5	(8) DIVISION OF REAL ESTATE						
6	Personal Services	4,582,087			4,582,087 ^a		
7					(48.9 FTE)		
8	Operating Expenses	148,970			148,970 ^a		
9	Mortgage Broker Consumer						
10	Protection	258,745			258,745 ^a		
11	Indirect Cost Assessment	511,488			511,488 ^a		
12							
13		5,501,290					
14	^a These amounts shall be from the Division of Real Estate Cash Fund created in Section 12-10-215 (2)(b), C.R.S.						

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1							
2	(9) DIVISION OF PROFESSIONS AND OCCUPATIONS						
3	Personal Services	19,829,219					
4	(240.2 FTE)						
5	Operating Expenses	1,594,561					
6	Payments to Department of						
7	Health Care Policy and						
8	Financing	14,652					
9	Indirect Cost Assessment	2,524,796					
10							
11							
12		23,963,228			23,357,446 ^a	593,451 ^b	12,331(I)
13							
14							

^a Of this amount, an estimated \$22,748,337 shall be from the Division of Professions and Occupations Cash Fund created in Section 12-20-105 (3), C.R.S., an estimated \$488,302 shall be from the Prescription Drug Monitoring Fund created in Section 12-280-405 (1), C.R.S., and \$120,807 shall be from the Marijuana Tax Cash Fund created in Section 39-28.8-501 (1), C.R.S.

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	^b Of this amount, \$324,041 shall be transferred from the Department of Health Care Policy and Financing from the Transfers to/from Other Departments, Transfer to Department of						
2	Regulatory Agencies for Nurse Aid Certification line item in the Executive Director's Office, and \$269,410 shall be transferred from the Department of Public Health and Environment						
3	from the Medicaid/Medicare Certification Program line item in the Health Facilities and Emergency Medical Services Division, Health Facilities Programs section.						
4							
5	(10) DIVISION OF SECURITIES						
6	Personal Services	2,613,111			2,613,111 ^a		
7					(24.0 FTE)		
8	Operating Expenses	93,769			93,769 ^a		
9	Securities Fraud Prosecution	1,501,754			1,501,754 ^a		
10	Indirect Cost Assessment	251,037			251,037 ^a		
11							
12		4,459,671					
13	^a These amounts shall be from the Division of Securities Cash Fund created in Section 11-51-707 (2), C.R.S.						
14							
15							

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	(11) DIVISION OF CONSERVATION						
2	Conservation Easement						
3	Program Costs	478,144			478,144 ^a		
4					(6.2 FTE)		
5	Indirect Cost Assessment	64,851			64,851 ^a		
6							
7		542,995					
8	^a These amounts shall be from the Conservation Cash Fund created in Section 12-15-107, C.R.S.						
9							
10							
11	TOTALS PART XIX						
12	(REGULATORY						
13	AGENCIES)	\$142,074,974	\$3,114,582		\$129,281,319 ^a	\$7,623,434	\$2,055,639 ^b
14		\$142,493,072	\$3,753,059		\$129,031,430 ^a	\$7,647,638	\$2,060,945 ^b
15							

		APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$

1 ^a Of this amount, \$701,716 contains an (I) notation.

2 ^b This amount contains an (I) notation.

3

4 **FOOTNOTES** -- THE FOLLOWING STATEMENTS ARE REFERENCED TO THE NUMBERED FOOTNOTES THROUGHOUT SECTION 2.

5

6 101a DEPARTMENT OF REGULATORY AGENCIES, CIVIL RIGHTS DIVISION, PERSONAL SERVICES -- IT IS THE GENERAL ASSEMBLY'S INTENT THAT THE DEPARTMENT

7 EXPEND ANY WORKSHARE FUNDS THAT ARE RECEIVED FROM THE U.S. DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT PRIOR TO EXPENDING GENERAL

8 FUND APPROPRIATIONS.

1 **SECTION 2. Safety clause.** The general assembly finds,
2 determines, and declares that this act is necessary for the immediate
3 preservation of the public peace, health, or safety or for appropriations for
4 the support and maintenance of the departments of the state and state
5 institutions.